

PART II.

Cases before alledged; for before the indictment life could not possibly be in hazard, and yet the offenders were punished. And this complaint of conspiracy doth not only lie in the case where a man is prosecuted for felony, treason, or rape, but where he is indicted falsely and maliciously for any trespass. But especially there be many examples where many have been maliciously indicted for common barratry, because that tendeth to the utter ruin of a man's reputation, which is as carefully preserved in this court as life itself. *Fitzherbert* puts a case where conspiracy lieth, for that a man was falsely presented in the leet for suffering a felon to escape; which, without question, is punishable in this court.

§. XIII. OF CAUSES HERE EXAMINABLE, NOT OTHERWISE PUNISHABLE.

LEAVING now the particulars, I come to express the great and high jurisdiction of this court, which, by the arm of sovereignty, punisheth errors creeping into the Commonwealth, which otherwise might prove dangerous and infectious diseases, or giveth life to the execution of laws, or the performance of such things as are necessary in the Commonwealth, yea although no positive law or continued custom of common law giveth warrant to it. Such are all punishments of breach of proclamations before they have the strength of an act of parliament, which this court hath stretched as far as ever any act of parliament did. As 41. *Eliz.* builders of houses in London were sentenced, and their houses ordered to be pulled down, and the materials to be distributed to the benefit of the parish where the building was; which disposition of the goods soundeth as a great extremity, and beyond the warrant of our laws; and yet surely very necessary, if any thing would